

judicial nullity. Petitioners do not explain why the approval was a "judicial act," other than to imply that the judge of a court of general jurisdiction, even without sitting on the bench or contemplating a case brought before him, is by virtue of his office performing a judicial act in everything he does.

However, the doctrine of judicial immunity does *not* apply to every act of an individual holding the title of "judge," *Gregory v. Thompson, supra*; *Lynch v. Johnson*, 420 F.2d 818 (6th Cir. 1970), even where the actions of the judge might take place in the courtroom or chambers. *Joyce v. Hickey*, 337 Mass. 118, 147 N.E.2d 187, 190 (1958); *Ex parte Virginia*, 100 U.S. 339, 348 (1879).

Although the doctrine of immunity serves to protect our judiciary, it is also intended to protect the public. *Pierson v. Ray*, 386 U.S. at 554. If Judge Stump were to be granted immunity in this case, the result would be that the judiciary would now have immunity for even non-judicial acts; and it would further mean that the interests of the public in a judiciary free from intimidation would be gravely overshadowed by the reasonable public fear of unbridled power exerted in a non-judicial setting and manner.

ARGUMENT

I

A JUDGE IS IMMUNE FROM CIVIL LIABILITY ONLY AS TO THOSE JUDICIAL ACTS PERFORMED IN EXERCISE OF HIS JURISDICTION.

The decision in this case must turn upon the common law doctrine of judicial immunity. Was Judge Stump performing a judicial act within the scope of his jurisdiction when he signed the typewritten paper thrust before him,

thereby approving the permanent sterilization of Linda Sparkman?

As summarized by this Court in *Pierson v. Ray*, 386 U.S. 547, 553-554 (1967), "Few doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction, as this Court recognized when it adopted the doctrine, in *Bradley v. Fisher*, 13 Wall. 335 (1872)." And the *Bradley* decision did indeed make clear, 13 Wall. at 351-352, that

... judges of courts of superior or general jurisdiction are not liable to civil actions for their judicial acts, even when such acts are in excess of their jurisdiction, and are alleged to have been done maliciously or corruptly. A distinction must be here observed between excess of jurisdiction and the clear absence of all jurisdiction over the subject-matter. Where there is clearly no jurisdiction over the subject-matter any authority exercised is a usurped authority, and for the exercise of such authority, when the want of jurisdiction is known to the judge, no excuse is permissible. But where jurisdiction over the subject-matter is invested by law in the judge, or in the court which he holds, the manner and extent in which the jurisdiction shall be exercised are generally as much questions for his determination as any other questions involved in the case, although upon the correctness of his determination in these particulars the validity of his judgments may depend.